

		evidence that they did so.’ [Citation.] This is a ‘heightened standard,’ and it ‘pertains to the parties’ manifestation of intent, not the agreement’s validity.’ [Citation.]” (<i>Najarro v. Superior Court</i> (2021) 70 Cal.App.5th 871, 879-880.) Here, the Arbitration Provision broadly states that “any dispute, claim or controversy arising out of or relating to these Terms or the applicability, breach, termination, validity, enforcement or interpretation thereof, or any use of the Airbnb Platform, Host Services, or any Content” shall be settled by binding arbitration. Further, “If there is a dispute about whether this Arbitration Agreement can be enforced or applies to our Dispute, you and Airbnb agree that the arbitrator will decide that issue.” (Anderson Decl., Exh. K; see also, <i>Najarro</i>, 70 Cal.App.5th at p. 888 [provision that, as relevant here, “the arbitrator shall have the exclusive power to resolve any dispute relating to the interpretation, applicability, enforceability, or formation of this [a]greement” constituted a “clear and unmistakable” delegation clause].) The arbitration provision appears to cover the claims asserted by Plaintiff. Accordingly, the motion is GRANTED. Also, the entire action is STAYED pending completion of arbitration pursuant to Code of Civil Procedure section 1281.4. Once the arbitration is completed, the action may proceed as to Defendant TATIANA TALEB. The court sets an ADR Review Hearing for 12/7/26 at 9:00 a.m. in Department W08. Plaintiff is ordered to submit a status report regarding arbitration <u>no later than 10 court days prior</u> to the hearing. Moving Defendant to give notice.
15	Jones vs. Hyundai Motor America	<u>Motion to Compel Arbitration</u> The court GRANTS Defendant Hyundai Motor America’s motion to compel arbitration the claims of Plaintiff Tina Jones and to stay the action.